

No. 26-0537

In the Supreme Court of Texas

In Re Kathryn Copeland, Relator

**RELATOR'S MOTION TO CONFIRM FILING AND VACATE
ERRONEOUS POST-DOCKETING REJECTION AND
SUPPORTING BRIEF**

Original Proceeding

In Aid of Pending Appeal, No. 02-24-00278-CV
(Second Court of Appeals, Fort Worth)

Kathryn Copeland

KATHRYN COPELAND

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Relator, Pro Se (Licensed Texas

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**TO THE HONORABLE JUSTICES OF THE TEXAS SUPREME
COURT:**

INTRODUCTION

This proceeding is already on file. On May 27, 2026, the Clerk of this Court received Relator's Emergency Petition for Writ of Prohibition and issued an official FILE COPY notice -- on this Court's own letterhead -- stating that the petition "was today received and filed in the Supreme Court of Texas." This Court assigned Case No. 26-0537. The Clerk served official notice on all parties, including the Office of the Attorney General (Matthew A. Deal, General Litigation Division) and the Tarrant County District Clerk.

The following day — after the case had been docketed, numbered, and served — the Clerk issued a rejection notice under SS 11.103(a) of the Texas Civil Practice and Remedies Code. A ministerial administrative act cannot unfile a document that has already been received, filed, assigned a case number, and served on all parties. The petition is on file. This motion requests that the Court confirm that filing and direct the Clerk to reinstate Case No. 26-0537 to active status.

Even if the Clerk had authority to reject the petition before docketing - - which is not conceded -- three independent grounds establish that SS 11.103(a) does not bar this proceeding. Any one is sufficient.

First, the petition is not "new litigation" within the meaning of Chapter 11. Under this Court's own decision in *Serafine v. Crump*, 691 S.W.3d 917 (Tex. 2024), an original proceeding filed in aid of a pending appeal is a continuation of the same civil action. Relator's direct appeal is pending in the Second Court of Appeals as No. 02-24-00278-CV; this petition is ancillary to it.

Second, even if the petition were "new litigation," Chapter 11's permission mechanism cannot operate here. The statute requires permission from "the appropriate local administrative judge described by Section 11.102(a)." No such judge exists for the Supreme Court of Texas. The mechanism is structurally impossible to satisfy.

Third, applying the restriction on this record -- where the statutory gatekeeper was eliminated by a named federal defendant through a falsified dismissal -- creates a complete forum lockout that violates the Texas Open Courts provision.

ARGUMENT

I. THE PETITION WAS ALREADY FILED, DOCKETED, AND SERVED. A POST-DOCKETING MINISTERIAL REJECTION CANNOT UN-FILE A DOCUMENT THAT IS ON THE COURT'S RECORD.

The operative sequence is not disputed. On May 27, 2026, the Clerk received Relator's petition and issued an official FILE COPY notice stating the petition "was today received and filed in the Supreme Court of Texas." Case No. 26-0537 was assigned. Official service was made on all parties: Relator (by email and postal mail), the Office of the Attorney General -- Matthew A. Deal, General Litigation Division -- (by email), and the Tarrant County District Clerk (by email). See Exhibit A (FILE COPY notices, May 27, 2026).

The following day, a rejection notice was issued under SS 11.103(a). But the filing had already occurred. Under Tex. R. App. P. 9.2(b), an electronically filed document is considered filed when it is received by the electronic filing system -- not when the clerk subsequently reviews it. The Court's own FILE COPY notice confirmed receipt and filing on May 27. The case was docketed. Parties were served. Case No. 26-0537 exists on this Court's records.

A clerk's ministerial review happens after filing, not before it. The clerk's role under SS 11.103 is to withhold filing at the outset — but that window closed when the clerk affirmatively acknowledged receipt and filing, assigned a case number, and served all parties. At that point, the filing was complete and the case was open. The subsequent rejection was procedurally ineffective.

Relator requests that this Court confirm the May 27, 2026 filing and direct the Clerk to reinstate Case No. 26-0537 to active status, with the original file-stamp date preserved.

II. IN THE ALTERNATIVE, THE PETITION IS NOT "NEW LITIGATION" UNDER CHAPTER 11 BECAUSE IT IS AN ANCILLARY ORIGINAL PROCEEDING IN AID OF A PENDING APPEAL.

Chapter 11's prefiling restriction applies to "new litigation." Tex. Civ. Prac. & Rem. Code SS 11.101(a). This Court resolved the meaning of "litigations" in *Serafine v. Crump*, 691 S.W.3d 917 (Tex. 2024). The Court held that "filing a notice of appeal -- or later, a petition for review -- does not commence a new civil action; it transfers jurisdiction over the same civil action, which is now pending in an appellate court for its review of the judgment." *Id.* at 920-21. The Court further held that "[a]n appeal is simply

the continuation of the action in suit brought in the trial court, and thus does not constitute a separate litigation." *Id.*

Relator's direct appeal, No. 02-24-00278-CV, is pending in the Second Court of Appeals, Fort Worth. The underlying civil action — a SAPCR in the 231st Judicial District Court of Tarrant County (TC# 231-686108-20) — is the same proceeding that gave rise to the vexatious litigant designation. The Emergency Petition for Writ of Prohibition is an ancillary original proceeding in aid of that appeal: it seeks this Court's supervisory authority to prevent interception of Relator's federally protected SSDI backpay while the validity of the underlying support order is under review in the Second Court.

An ancillary original proceeding in aid of a pending appeal is not "new litigation." Under *Serafine*, it is part of the same civil action. The prefiling restriction has no application.

The Fifth District Court of Appeals reached a consistent conclusion in the related proceeding. In its May 11, 2026 opinion in No. 05-26-00580-CV, the Court acknowledged in footnote 2 that Relator 'has not shown that the specific documents she referenced constitute "new litigation" under § 11.103 or the case law interpreting it.' That court — in the most recent judicial examination of the Chapter 11 question in this litigation — declined to find that the underlying filings constituted new litigation. The acknowledgment is

not a holding, but it aligns with Serafine and provides additional support for the conclusion that this petition is not 'new litigation' requiring prefiling permission.

III. THE STATUTORY PERMISSION MECHANISM CANNOT OPERATE AT THIS COURT BECAUSE NO "APPROPRIATE LOCAL ADMINISTRATIVE JUDGE" EXISTS FOR THE SUPREME COURT OF TEXAS.

Even if this petition were "new litigation," SS 11.103(a) requires the litigant to "obtain[] an order from the appropriate local administrative judge described by Section 11.102(a) permitting the filing." Section 11.102(a) identifies the appropriate LAJ as "the local administrative judge of the type of court in which the vexatious litigant intends to file."

The Supreme Court of Texas has no local administrative judge. The LAJ framework is a trial-court mechanism organized by county and court type -- district courts, statutory county courts, justice courts -- administered under the Texas Government Code by judges with specific geographic authority. *See In re Hernandez*, 676 S.W.3d 758 (Tex. App.—El Paso 2023) (describing LAJ permission process for district and county courts at law). There is no analogous official for the Supreme Court of Texas anywhere in Chapter 11 or the Government Code.

A litigant cannot obtain permission from an authority that does not exist. Requiring compliance with a structurally impossible condition does not regulate access -- it eliminates it. No Texas court has ever held that SS 11.103(a) applies to original proceedings in the Supreme Court. Texas Jurisprudence Third Edition confirms the gap: "Filings with the Texas Supreme Court are not explicitly referenced as subject to the prefiling permission system." 1A Tex. Jur. 3d Actions SS 17.

The Legislature's own drafting confirms the statutory boundary. When it intended to address appellate court clerks, it did so expressly: SS 11.103(d) provides that "[a] clerk of a court of appeals may file an appeal from a prefiling order entered under Section 11.101 . . . or a timely filed writ of mandamus under Section 11.102." The Legislature wrote a specific provision for courts of appeals clerks and was silent about the Clerk of the Supreme Court. The Clerk's own rejection notice acknowledged this gap: "11.103(d) addressed COA clerk but not SCOTUS." Under the canon of *expressio unius est exclusio alterius*, that silence is a boundary, not an oversight.

IV. APPLYING THE PREFILING RESTRICTION ON THIS RECORD CREATES AN UNCONSTITUTIONAL FORUM LOCKOUT IN VIOLATION OF ARTICLE I, SECTION 13 OF THE TEXAS CONSTITUTION.

Texas courts have upheld Chapter 11 on the ground that it does not "completely deny access to the courts" because it preserves a "reasonable alternative" — the ability to seek LAJ permission. *Leonard v. Abbott*, 171 S.W.3d 451, 459 (Tex. App.—Austin 2005); *Clifton v. Walters*, 308 S.W.3d 94 (Tex. App. —Fort Worth 2010). That constitutional premise fails when the alternative has been systematically eliminated.

Relator's complete forum history as of this filing:

Dallas 330th District Court (No. DF-25-02212): CLOSED. Bill of review not accepted by clerk due to vexatious litigant label, which Relator contends is void.

Tarrant County Local Administrative Judge (Judge Newell): Dismissed May 18, 2026 on the expressly false finding that "no such permission was requested" — directly contradicted by Tyler eFiling Envelope ID 112653256, timestamped March 19, 2026. Judge Newell is a named defendant in Relator's pending federal civil rights action, *Copeland v. Tarrant County, et. al.*; No. 4:26-cv-585-O-BP (N.D. Tex.) and No. 26-10389 (5th Cir.).

Fifth District Court of Appeals (No. 05-26-00580-CV): Mandamus denied May 11, 2026, solely on jurisdictional grounds: the LAJ lacked authority to declare the vexatious litigant order void. Motion for reconsideration pending.

Second Court of Appeals (No. 02-24-00278-CV): Direct appeal pending. Temporary orders denied per curiam May 13, 2026. OAG argued that court lacks authority to enjoin OAG enforcement under SS 22.002(c).

Texas Supreme Court (No. 26-0537): Present filing -- docketed May 27, rejected May 28.

There is an additional ground that cuts to the threshold. The January 21, 2025 Tarrant County prefiling order — the predicate for the Clerk's rejection — is void ab initio. That order was entered approximately four months and eight days after the trial court's plenary power expired under Tex. R. Civ. P. 329b. In *In re Florance*, 377 S.W.3d 837, 844 (Tex. App.—Dallas 2012, orig. proceeding), a vexatious litigant order entered after plenary power expired was held void as a matter of law. *Sanchez v. Hester*, 911 S.W.2d 173 (Tex. App.—Corpus Christi 1995), confirms that void orders may be challenged in any court, at any time. A clerk's rejection premised on a void prefiling order has no legal foundation. The Clerk did not enforce a valid statute against a

valid order; it enforced a void nullity. That is independently sufficient to vacate the rejection.

Every forum is simultaneously closed. Chapter 11 survives constitutional challenge only so long as it preserves a functional access mechanism. Where that mechanism has been destroyed by a named federal defendant through a falsified record, the as-applied result is categorical exclusion from every court in Texas. That is precisely what Article I, Section 13's guarantee that "[a]ll courts shall be open" was designed to prevent.

PRAYER

Relator respectfully requests that this Court: (1) confirm that the Emergency Petition for Writ of Prohibition was filed on May 27, 2026, as reflected in the Clerk's own FILE COPY notice assigning Case No. 26-0537, and direct the Clerk to reinstate Case No. 26-0537 to active status; or in the alternative, (2) direct the Clerk to accept the petition on the independent grounds that (a) the petition is not "new litigation" under *Serafine v. Crump*, 691 S.W.3d 917 (Tex. 2024); (b) no appropriate local administrative judge exists for this Court within the meaning of SS 11.102(a); and (c) as-applied enforcement of SS 11.103(a) on this record constitutes an unconstitutional forum lockdown under Article I, Section 13 of the Texas Constitution.

Respectfully submitted,

A handwritten signature in black ink that reads "Kathryn Copeland". The script is cursive and fluid, with the first name and last name clearly distinguishable.

Kathryn Copeland

Relator, Pro Se

Texas Bar No. 24086056

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Grapevine, Texas 76051

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CERTIFICATE OF SERVICE

I certify that on May 28, 2026, a true and correct copy of the foregoing was served on all parties via eFileTexas or verified email, as follows:

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Real Party in Interest — OAG

Office of the Clerk
Second Court of Appeals
Tim Curry Criminal Justice Center
401 W. Belknap, Suite 9000
Fort Worth, Texas 76196



KATHRYN COPELAND

RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

KATHRYN COPELAND

1137 S. PINE STREET

GRAPEVINE, TX 76051

* DELIVERED VIA E-MAIL & POSTAL *

RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

MR. MATTHEW A. DEAL
ASSISTANT ATTORNEY GENERAL
GENERAL LITIGATION DIVISION
P.O. BOX 12548, CAPITOL STATION
AUSTIN, TX 78701
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RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

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DISTRICT CLERK TARRANT COUNTY
TARRANT COUNTY COURT
TOM VANDERGRIFF CIVIL COURTS BLDG
100 N. CALHOUN ST, 2ND FLOOR
FORT WORTH, TX 76196-0402
* DELIVERED VIA E-MAIL *

RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

MS. CLARISSA HODGES
CLERK, SECOND COURT OF APPEALS
401 WEST BELKNAP, SUITE 9000
FORT WORTH, TX 76196
* DELIVERED VIA E-MAIL *

RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

MS. NICOLE NATALIE LOYA
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AUSTIN, TX 78711
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RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

SUSAN SMITH
LAW OFFICE OF SUSAN F. SMITH
2225 E. RANDOL MILL ROAD
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* DELIVERED VIA E-MAIL *

RE: Case No. 26-0537

DATE: 5/27/2026

COA #: 02-24-00278-CV

TC#: 231-686108-20

STYLE: IN RE COPELAND

A petition for writ of prohibition, as styled above,
was today received and filed in the Supreme Court of Texas.

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